

		Plaintiff argues Defendant provides no receipts of invoices to indicate that this is the actual amount charged and/or spent. Defendant argues these were presented under the “Other” costs category because they are the “filing Fees” that are charged from First Legal, a legal service used to aid in the filing and service of documents necessary to litigate the case. In reviewing the attachment of the work-sheet, only filing fees for the Answer (\$37.75) and a Ex Pate Minute order (\$7.50) are identified. It is unclear what the two other invoices connected for \$195.22 and \$113.05, respectively, are for. As such, the Motion is GRANTED in the amount of \$308.27 as to Item 15. <i>Defendant Ford Motor Company to give notice.</i>
109	Rask vs. County of Orange, 25-01495933	<u>Motion to Stay Proceedings (ROA 62)</u> Defendants County of Orange (the “County”); Sheriff Don Barnes (“Sheriff Barnes”); Deputy N. Leland, Deputy Damasco, Deputy Belfield, Deputy E. Rodriguez, Deputy L. Vasquez, Deputy S. Vasquez, Sergeant Byrd, Deputy D. France, Deputy Z. Wainwright, Deputy G. Scannell, and Deputy L. Rhodes (collectively, “Deputy Defendants”), and Sergeant C. Strunk (“Officer Strunk”) seek an order staying this action during the pendency of criminal proceedings against Plaintiff Wayne Christopher Rask (“Plaintiff”). Government Code § 945.3 provides in part: “No person charged by indictment, information, complaint, or other accusatory pleading charging a criminal offense may bring a civil action for money or damages against a peace officer or the public entity employing a peace officer based upon conduct of the peace officer relating to the offense for which the accused is charged, including an act or omission in investigating or reporting the offense or arresting or detaining the accused, while the charges against the accused are pending before a superior court.” (Gov. Code, § 945.3.) “The purpose of the statute was ' 'to eliminate the use of civil damage complaints as plea bargaining levers' “ and

possibly 'to prevent use of civil false arrest suits as a device to inquire into prosecutorial materials and investigative information while the criminal charge is pending.' [Citation.]” (*Damjanovic v. Ambrose* (1992) 3 Cal.App.4th 503, 508 (*citing* *McMartin v. County of Los Angeles* (1988) 202 Cal.App.3d 848, 855).)

Plaintiff does not dispute that on June 17, 2024, in Orange County Superior Court Case No. 24HF1195, Plaintiff was charged with one count of Penal Code section 69(a) (resisting an executive officer), and misdemeanor counts under Penal Code sections 647(f) (public intoxication) and 243(b) (battery on a peace officer). (Clark Decl. ¶ 2, Exh. A; Oppn at 2:3-6.) It appears that this criminal action is still pending.

This action involves allegations of “police misconduct involving excessive force, intentional falsification of police reports, and severe injuries inflicted upon PLAINTIFF by deputies of the Aliso Viejo Sheriff’s Department.” (FAC ¶ 1.) The parties do not dispute that the excessive force incident alleged in the FAC, which occurred on June 15, 2024, is the same incident from which the criminal charges arise.

Plaintiff opposes the motion. First, Plaintiff contends that Section 945.3 does not apply to the City of Aliso Viejo because it is not an employer of the deputies. Rather, the City contracts with the County for law-enforcement services. The Court notes that the City is not a moving party on this motion, nor did it file an opposition.

Nonetheless, the FAC alleges that “at all relevant times, Deputy Defendants, Officer Strunk and Sheriff Barnes were duly authorized employees and agents of the County and/or the City of Aliso Viejo.” (FAC ¶ 12.) Further, the case Plaintiff cites in support of the proposition that section 945.3 does not extend to contracting public entities, but only to the public entity employing the peace officer, did not address that issue. (See *Damjanovic v. Ambrose* (1992) 3 Cal.App.4th 503.) The issue in *Damjanovic* was whether Section 945.3 extends the time for serving civilian defendants with summons where a case involves both peace officers and civilian defendants. The court made no distinction between contracting public entities and “employer” public entities.

Plaintiff next contends that not all of the allegations of the FAC is “based upon conduct of the peace officer relating to the offense for which the accused is charged.” Plaintiff points out that some of the conduct alleged in the FAC occurred after Plaintiff had already been pinned and immobilized by the deputies, including failure to render medical aid and falsification of post-incident use-of-force reports. (Oppn at 3:6-19.)

Plaintiff’s narrow reading of the statute is unavailing. On its face, section 945.3 is broader than Plaintiff’s cherry-picked excerpt discloses. The statute prohibits a civil action “based upon conduct of the peace officer relating to the offense for which the accused is charged, including an act or omission in investigating or reporting the offense or arresting or detaining the accused. (Gov. Code, § 945.3.)

Thus, the failure to render medical aid while Plaintiff was being detained, and alleged falsification of post-incident reports all seem to fall within the scope of the statute. To the extent that some of the alleged conduct falls outside the scope of the statute, the Court has inherent authority to control the processes before it by imposing a stay. (See Code Civ. Proc., § 128, subd. (a) [“Every court shall have the power . . . (3) [t]o provide for the orderly conduct of proceedings before it . . . [and] (8) [t]o amend and control its process and orders so as to make them conform to law and justice.”].)

Here, the Court finds that a stay of the entire action is warranted in order to further the aims of Section 945.3, as well as in the interests of justice and to promote judicial efficiency.

Accordingly, this action is STAYED during the pendency of Orange County Superior Court Case No. 24HF1195.

A status conference is set for March 25, 2027 at 1:30 p.m. in Department W15.

Demurrer and Motion to Strike Portions of FAC (ROAs 60, 62)

In light of the stay, the Demurrer and Motion to Strike are OFF CALENDAR. The hearings will be rescheduled once the stay is lifted.

		The Case Management Conference is vacated. <i>Moving Defendants to give notice.</i>
111	Orange County Power Authority vs. County of Orange, 26-01542269	Plaintiff Orange County Power Authority ("Plaintiff") moves to transfer this action to a neutral county (preferably San Diego County) pursuant to Code of Civil Procedure section 394. Defendant County of Orange opposes the motion and argues the case should remain in Orange County. Alternatively, Defendant proposes the case be transferred to Los Angeles County or Riverside County. The Motion is GRANTED and the Court ORDERS the case TRANSFERRED to San Diego County. Code of Civil Procedure section 394 states: "An action or proceeding against a county . . . may be tried in the county, or city and county, or the county in which the city or local agency is situated, unless the action or proceeding is brought by a county, or city and county, a city, or local agency, in which case it may be tried in any county, or city and county, not a party thereto and in which the city or local agency is not situated. . . ." Code Civ. Proc., § 394, subd. (a).) "[S]ection 394 is a specific statute dealing with the venue of actions by or against counties and other public entities." (<i>City of Alameda v. Superior Court</i> (1974) 42 Cal.App.3d 312, 317.) (<i>Ibid.</i>) "The evident purpose is to guard against local prejudices which sometimes exist in favor of litigants within a county as against those from without and to secure to both parties to a suit a trial upon neutral ground." (<i>County of San Bernardino v. Superior Court</i> (1994) 30 Cal.App.4th 378, 386; <i>see also City of Alameda v. Superior Court</i> (1974) 42 Cal.App.3d 312, 317 ["It is designed to obviate the appearance of prejudice as well as actual prejudice or bias."].) <i>County of San Bernardino v. Superior Court</i> (1994) 30 Cal.App.4th 378, 386 provides the following example: "For example, in <i>Garrett v. Superior Court</i> (1947) 11 Cal.3d 245 [113 Cal.Rptr. 152, 520 P.2d 968], a